(UNOFFICIAL TRANSLATION)

(The Royal Seal)

CONTROL OF ITEM IN RELATION TO THE PROLIFERATION OF WEAPONS OF MASS DESTRUCTION ACT

B.E. 2562 (2019)

HIS MAJESTY KING MAHA VAJIRALONGKORN BODINDRADEBAYAVARANGKUN

Given on the 26th Day of April B.E. 2562 (2019)

Being the 4th Year of the Present Reign

His Majesty King Maha Vajiralongkorn Bodindradebayavarangkun is graciously pleased to proclaim that:

Whereas it is expedient to have the Act on the control of Item in Relation to the Proliferation of Weapons of Mass Destruction,

This Act contains provisions in relation to limitation of rights and liberties of the people which section 26 in conjunction with section 33, section 37 and section 40 of the Constitution of the Kingdom of Thailand so permitted to be carried out by virtue of law.

Reasons and necessities for the limitation of rights and liberties under this Act are for the nation to have effective law on the control of Item in Relation to the Proliferation of Weapons of Mass Destruction, so the security of the nation henceforth established. The Enactment of this law, thus conforms to the conditions set forth in section 26 of the Constitution of the Kingdom of Thailand.

Be it, therefore, enacted by the King by and with the advice and consent of the National Legislative Assembly acting as the National Assembly as follows;

Section 1: This Act shall be called the "Control of Item in Relation to the Proliferation of Weapons of Mass Destruction Act B.E. 2562".

Section 2: This Act shall come into force as from the first day of January B.E. 2563 (2020) except for Section 3, Section 4, Section 5, Section 6, Section 7, Section 8, Section 9, Section 10 and Section 11 that shall come into force from the day of its publication in the Government Gazette.

Section 3: Exceptions for application of any provisions of this Act to Regulated Activity, to academic institutions under the National Education Act, to higher education institutions under the laws thereof or to state agencies, shall be enacted by a Royal Decree in accordance with the proposal of the Committee. Rules and conditions may be set forth for the application of such exceptions.

Rules and conditions set forth under paragraph one, shall be prescribed by the ministerial regulation.

Section 4: In this Act,

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

“Weapons of Mass Destruction” means nuclear weapon, biological weapon, chemical weapon or any other weapons that are with potential to cause harm to a large number of human lives, animals or plants, or to cause grave damage to the environment in the manner similar to that of nuclear weapon, biological weapon and chemical weapon and shall include their means of delivery, components or equipment;

“Item” means tangible and intangible items, with or without commercial usefulness, including containers and packaging thereof and shall include technology and software;

“Dual-use Item” means Item that could be utilized both civilly and militarily, and could be used to design, develop, manufacture, apply, modify, store, or transport Weapons of Mass Destruction or could be treated by any means in order to acquire Weapons of Mass Destruction;

"Item in Relation to the Proliferation of Weapons of Mass Destruction” means Weapons of Mass Destruction, armament, and Dual-use Item;

“Regulated Activity” means export, re-export, transshipment, transit, brokering and shall include any activity performed with intention to proliferate Item(s) that are related to Weapons of Mass Destruction. In case where Regulated Activity shall include importation, the Royal Decree shall be legislated;

“Brokering” means negotiation, management or agreement resulting in transactions of buying, selling or providing Item in Relation to the Proliferation of Weapons of Mass Destruction located outside of the Kingdom that leads to the movement of such Item from one country to another;

“Committee” means the Control of Item in Relation to The Proliferation of Weapons of Mass Destruction Committee;

"Competent Official” means civil servant or government official, holding a position not lower than Practitioner Level or equivalent, appointed by the Minister for the execution of this Act;

“Director-General” means The Director-General of Department of Foreign Trade;

“Minister” means the minister having charge and control of the execution of this Act;

Section 5: The Minister of Commerce shall have charge and control of the execution of this Act and shall have the power to appoint and remove competent official, issue ministerial regulation, reduce or grant exemption from fees for not more than the rates provided at the end of this Act and issue notifications for the execution of this Act.

The ministerial regulation under paragraph one may prescribe rate of the fees differently according to the category or technical specification of the Item.

Such ministerial regulation and notification shall come into force upon their publication in the Government Gazette.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

(UNOFFICIAL TRANSLATION)

CHAPTER I

THE CONTROL OF ITEM IN RELATION TO THE PROLIFERATION OF WEAPONS OF MASS DESTRUCTION COMMITTEE

Section 6: There shall be a committee called "The Control of Item in Relation to The Proliferation of Weapons of Mass Destruction committee " consisting of the Minister of Commerce as Chairperson; the Permanent Secretary of the Ministry of Commerce as Deputy Chairperson, the Secretary-General of the Anti-Money Laundering Office, the Secretary-General of the National Security Council, the Director of the National Intelligence Agency, the Director-General of the Department of Industrial Works, the Director-General of the Department of Agriculture, the Director-General of the Department of Medical Science, the Director-General of the Customs Department, the Director-General of the Department of International Organizations, the Secretary-General of the Food and Drugs Administration, the Secretary-General of the Office of Atoms for Peace, the Director of the Defense Industrial Department and the Secretary-General of the National Broadcasting and Telecommunication Commissions as members.

The Director-General shall be member and secretary and shall appoint official of the Department of Foreign Trade not exceeding two persons to be the assistant secretary(-ies).

For the benefit of proceeding according to the duties and powers of the Committee, the Committee may resolve to occasionally invite person(s) with knowledge, expertise, or experiences on the subject to be considered to the meeting as member(s). In such case, the person so invited who attends the meeting shall be considered a member for the meeting such person thereto invited.

Section 7: The Committee shall have the duties and powers as follows;

(1) To propose to the Cabinet for their approval of policies and plans for the control of Item in Relation to the Proliferation of Weapons of Mass Destruction;

(2) To suggest measures and guidelines to the Cabinet for the purpose of prescribing measures under Section 12;

(3) To supervise and provide advice on the operations taken by government agencies and private sectors on the control of Item in Relation to the Proliferation of Weapons of Mass Destruction;

(4) To appoint a sub-committee to provide advice regarding Item in Relation to the Proliferation of Weapons of Mass Destruction and other operations as assigned by the Committee;

(5) To exercise any other missions prescribed by law to be duties and powers of the Committee.

The measures or guidelines under (2) and the supervision under (3) shall be under the responsibility of certain authorities and shall not cause any unnecessary burden on the people.

Rules and procedures for the appointment of the sub-committee(s) under (4) shall be in accordance with the notification issued by the Minister. The appointment of such sub-committee shall be granted only as necessary with specified duration of operation time.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

Section 8: In the execution of this Act, The Director-General may request suggestion from the sub-committee with regard to Item in Relation to the Proliferation of Weapons of Mass Destruction and technical-risk assessment of such Item. The Director-General shall subsequently report on the suggestion to the Committee.

Section 9: At a meeting of the Committee, the presence of not less than one-half of members is required to constitute a quorum.

At a meeting of the Committee, in a case where the Chairperson does not attend the meeting or is unable to perform the duties, the Deputy Chairperson shall preside over the meeting. If both the Chairperson and the Deputy Chairperson are unable to attend the meeting or to perform their duties, the members present shall elect one among themselves to preside over the meeting.

A decision of the meeting shall be made by a majority of votes. In casting a vote, each member shall have one vote. In case of an equality of votes, the presiding Chairperson shall give one more vote to become the ruling vote.

Section 10: The provision of Section 9 shall be applied to the sub-committee(s) meeting mutatis mutandis.

Section 11: The Department of Foreign Trade shall be responsible for the administrative works of the Committee and sub-committee(s) as well as the coordination and the cooperation with educational institutions, higher education institutions, government agencies, international organizations, or relevant private organizations for the benefit of regulating Item in Relation to the Proliferation of Weapons of Mass Destruction.

CHAPTER II

CONTROL OF ITEM IN RELATION TO THE PROLIFERATION OF WEAPONS OF MASS DESTRUCTION

Section 12: The Minister, with the suggestion of the Committee, shall have duties and powers to specify measures as follows;

(1) To specify Item to be requiring a licensing or to be requiring a certification certifying unrelatedness to the proliferation of Weapons of Mass Destruction,

(2) To specify Regulated Activity for Item under (1),

(3) To prescribe any other measures in order to control the proliferation of Weapons of Mass Destruction including measures with regard to Item with reasonable doubt concerning a connection between an end-use or an end-user and the proliferation of Weapons of Mass Destruction.

Upon a notification of the measures prescribed under paragraph one, a report shall be made to the Cabinet for acknowledgement and shall also be disseminated to the public through the information technology system of the Department of Foreign Trade.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

Section 13: After a notification specifying Regulated Activity for the Item requiring the license has been issued, no one shall conduct such Regulated Activity unless the license has been obtained from the Director-General or a person thereby entrusted.

The application for the licenses, types of the licenses, issuance of the licenses, forms of the licenses, validity of the licenses, renewal of the licenses and the issuance of a license substitute document shall be in accordance with the rules, procedures, and conditions prescribed and notified by the Minister. The prescription may include the inspection of an internal compliance program, however, duration of time for each procedure shall be clearly specified.

Section 14: A license applicant under section 13 shall be a person having been registered with the Department of Foreign Trade according to the rules set forth by the Director-General and shall not be with the following prohibited characteristics;

(1) Obtaining a license which is being suspended or a certification which is being withheld according to this Act;

(2) Obtained a license that had been suspended or a certification that had been withheld according to this Act unless the applicant have completely complied with the conditions prescribed;

(3) Obtained a license that had been revoked according to this Act, unless the revocation occurs more than one year before the day of the application submission;

(4) Having been sentenced by a final judgement to imprisonment for an offence committed under this Act.

In case an applicant is a juristic person, a manager or a representative of the juristic person shall be qualified and shall not be with the prohibited characteristics under paragraph one.

Section 15: In a case where a person conducting Regulated Activity fails to comply with the conditions set forth in a license, the Director–General shall issue an order to suspend the license for a period not exceeding one hundred and twenty days each time.

In a case where a person conducting the Regulated Activity fails to rectify the incorrectness or to comply with the conditions within the period of time specified under paragraph one, the Director-General shall issue an order to revoke the license.

Section 16: After a notification specifying Regulated Activity for the Item requiring the certification has been issued, no one shall conduct such Regulated Activity unless the Item have been certified.

The certification, forms of certification and validity of the certification shall be in accordance with the rules, procedures, and conditions prescribed and notified by the Minister.

The provision of section 14 shall apply to the certifier mutatis mutandis.

Section 17: In a case where a certifier fails to comply with the rules and procedures prescribed and notified by the Minister pursuant to section 16 paragraph two, the Director-General shall issue an order requesting the certifier to rectify the incorrectness within a specified period of time not exceeding

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

one hundred and twenty days. Where such certifier fails to comply with the order of the Director-General, the certification shall be deemed never taken place.

In a case where the certifier fails to comply with the conditions prescribed and notified by the Minister pursuant to section 16, paragraph two, the Director-General shall issue an order to withhold such certification until the conditions have been completely complied with.

Section 18: After a notification prescribing measure(s) pursuant to section 12 (3) has been issued, no one shall conduct Regulated Activity unless the measure(s) has been complied with.

In prescribing measure(s) under paragraph one, the Director-General may set forth conditions for the person conducting Regulated Activity to comply.

Section 19: In a case where a person conducting Regulated Activity fails to comply with the conditions set forth by the Director-General pursuant to section 18 paragraph two, the Director-General shall issue an order to withhold such conduct of the Regulated Activity until the conditions have been completely complied with.

Section 20: The provisions under the Customs law in the sections regarding import and export of goods, transit, transshipment and un-clearance goods, the customs officers and sanctions shall apply to Regulated Activity regarding Item in Relation to the Proliferation of Weapons of Mass Destruction mutatis mutandis.

CHAPTER III

APPEALS

Section 21: Any person exercising Regulated Activity, who does not concur with the order issued by the Director-General or a person entrusted under Chapter 2, is entitled to the right to appeal in written form to the Minister within thirty days from the date of receipt of the order.

The appeal lodged under paragraph one shall not stay the enforcement of the order unless the Minister orders the stay of the enforcement.

The decision of the Minister shall be final.

Section 22: The Minister shall complete the consideration of an appeal within thirty days from the date of receipt of such appeal.

In a case where there exists necessity rendering the consideration unable to be completed within the period stated under paragraph one, a written notification shall be made to the appellant before the expiration of such period. For this purpose, the period shall be extended not more than two times, each time for a period not exceeding thirty days as from the expiration of such period. In the event that the consideration remains incomplete, it shall be deemed that the Minister concurs with the appellant.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

(UNOFFICIAL TRANSLATION)

CHAPTER IV

COMPETENT OFFICIAL

_____

Section 23: For the execution of this Act, the Competent Official shall have the following power;

(1) To enter any business establishment or premises in connection with Regulated Activity during the period between sunrise and sunset or during office hours of such establishment or premises or enter vehicle loaded, or is with probable cause to believe that loaded, with Item in connection with the commission of the offence(s) under this Act in order to search or inspect.

(2) To retain a vehicle loaded or is with probable cause to believe that loaded with Item in connection with commission of the offenses under this Act or to request any vehicle, while is within the Kingdom, to return to wharf the vessel or to dock at a designated place or port for the purposes of inspection and control as per the intention of this Act.

(3) To seize or sequestrate properties in connection with commission of the offenses under this Act for the benefit of legal proceedings, provided that a probable cause to believe that offense(s) under this Act is committed exists.

(4) To issue a summon to person(s) concerned requesting them to give oral statement or to furnish documents and evidence necessary for the consideration of Competent Official.

In exercising the power pursuant to paragraph one (1) and (3), Competent Official shall comply with the Criminal Procedure Code, ensure the person(s) concerned prior to the search that he shall fairly perform his duty, present the credentials and documents granting power to search to the person possessing the dwelling place or premises unless such dwelling place or premises is not being possessed. The search shall be conducted in the presence of at least two other individuals. The Competent Official shall handover a copy of the documents to the possessor premises as immediately as practical.

Once entering and conducting the search, if the search processed is not yet completed, it may be progressed in nighttime or after the working hours of such establishment or premises.

Where there is utmost exigency, the search may be operated in nighttime with Competent Official with the position category of Professional Level or higher acting as chief of the operation.

The exercising of power of Competent Official shall be in accordance with the rules, procedures, and conditions set forth and notified by the Director-General.

Section 24: In performing duties pursuant to section 23, person(s) concerned shall provide appropriate facilitation.

Section 25: In performing duties under this Act, Competent Official shall present the Competent Official identity card to the person(s) concerned.

The Competent Official identity card shall conform to the form specified and notified by the Director-General.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

Section 26: In performing duties under this Act, Competent Official shall be the competent official under the Penal Code of Thailand

CHAPTER V

CIVIL LIABILITY

Section 27: Any person conducting Regulated Activity of Item in Relation to the Proliferation of Weapons of Mass Destruction in violation of or without complying to this Act, knowing that the end user is going to proceed illegally with the Item so as to cause harm to life or body of other persons, the person conducting such Regulated Activity shall be collectively liable for the compensation for the damage incurred.

CHAPTER VI

PENAL PROVISIONS

Section 28: Any person violating section 13 paragraph one or not complying to the measures prescribed pursuant to section 18 shall be liable to a term of imprisonment not exceeding two years or to a fine not exceeding two hundred thousand Baht or to both.

In the event that the violation under paragraph one is committed with an intent to proceed with Item in Relation to the Proliferation of Weapons of Mass Destruction to cause harm to other persons, or to proceed with such Item to design, develop, manufacture, operate, modify, store, or transport Weapons of Mass Destruction, or to proceed by any means with such Item in order to acquire Weapons of Mass Destruction, the violator shall be liable to a term of imprisonment not exceeding ten years or to a fine not exceeding one million Baht or to both.

Item involved in the perpetration of the offense under paragraph two shall be forfeited.

Section 29: Any person providing false information or concealing facts that should be revealed to the Competent Official with an intent to acquire a license to conduct Regulated Activity under section 13 paragraph one, or with an intent to be qualified under the measures prescribed under section 18, such person shall be liable to a term of imprisonment not exceeding one year or to a fine not exceeding one hundred thousand Baht or to both.

Section 30: Any person perpetrating offenses under section 28 or section 29 outside the Kingdom of Thailand shall be punished in the Kingdom according to this Act, provided that the case presents as follows ;

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

(1) An offender or an accomplice is a Thai national or domiciled in Thailand,

(2) An offender is an alien who commits offence(s) intending for the perpetration to be taken place in the Kingdom of Thailand, or the injured person be the Thai government,

(3) An offender is an alien, and the perpetration committed is an offence under the law of the state to which the perpetration has taken place, provided that there is a presence of such offender within the jurisdiction of the Kingdom of Thailand and such perpetrator is not extradited according to the law regarding extradition.

The provision of section 10 of the Penal Code of Thailand shall apply to the offender under paragraph one mutatis mutandis.

Section 31: Any person who fails to give oral statement or to furnish documents and evidence as summoned pursuant to section 23 (4), obstructs or fails to provide facilitation for Competent Official in performing duties in accordance with section 24, shall be liable to a term of imprisonment not exceeding one year or to a fine not exceeding one hundred thousand Baht or to both.

Section 32: Where an offender is a juristic person, if the perpetration of such juristic person derives from an order or action of a director, a manager, or any person responsible for its operations, or where the aforementioned person(s) has a duty to issue an order or to take action but fails to do so and causing the juristic person to commit the offense(s), such person shall be liable to the punishment provided for the offence(s) as well.

Countersigned by:

General Prayuth Chan - Ocha

Prime Minister

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

(UNOFFICIAL TRANSLATION)

RATES OF FEES

_____

(1) Application form for a license	2,000 Baht per copy
(2) Application form for a license renewal	2,000 Baht per copy
(3) Application form for a license substitute document	1,000 Baht per copy
(4) Application form for the inspection of internal compliance program	2,000 Baht per copy
(5) Application form for a renewal of Compliance Program certificate	2,000 Baht per copy
(6) License	10,000 Baht
(7) License renewal	10,000 Baht
(8) License substitute document	1,000 Baht
(9) Inspection of the internal compliance program	100,000 Baht
(10) Internal Compliance Program certificate	5,000 Baht
(11) Internal Compliance Program certificate renewal	5,000 Baht

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.

(UNOFFICIAL TRANSLATION)

NOTE: The reasons for the enactment of this Act is due to the United Nations Security Council issuance of the resolution of the United Nations Security Council No. 1540 (2004) on April 28, B.E. 2547 (2004) and other resolutions related thereto, requesting member states to establish domestic measures to prevent the proliferation of weapons of mass destruction that are with potential to cause harm to a large number of human lives, animals or plants, or to cause grave damage to the environment including general goods that could be assembled, developed, enhanced and or treated by any other means in connection with the weapons of mass destruction, by establishing a control system for the exportation, the re-exportation, the transshipment, the transit, the brokering and any activity performed with intention to proliferate items that are related to the weapons of mass destruction, and to establish measures relating to items with reasonable doubt with regard to the relation between an end-use or an end-user of such items and the proliferation of the weapons of mass destruction whereby Thailand, as a member state of the United Nations is obliged by Article 25 of the Charter of the United Nations to comply therewith. Nevertheless, the laws governing the matters at the present time are inadequate for a complete implementation of such resolutions, particularly on the control of brokering and intangible goods. Therefore, it is a necessity to establish a committee - based system for the policy and guideline planning for the control of the proliferation of the weapons of mass destruction in order to ensure comprehensive integration of operations among agencies concerned, to establish a license - based system, or any other measures for the activities regulated and items in relation to the proliferation of the weapons of mass destruction to be prescribed to ensure national security and public safety, and also to prescribe appropriate civil liabilities, administrative and penal penalties so that Thailand could control the proliferation of the weapons of mass destruction effectively. In that respect, it is necessary for this Act to be enacted.

DISCLAIMER: This text has been provided for educational/comprehension purposes and contains no legal authority. The Department of Foreign Trade shall assume no responsibility for any liabilities arising from the use and/or reference of this text. In case of any discrepancy between the Thai original and the English translation, the former shall take priority.